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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**EX PARTE APPLICATION FOR
ORDER SHORTENING TIME TO
HEAR MOTION FOR LEAVE TO
AMEND CONCURRENTLY WITH
DEFENDANT’S SPECIAL MOTION TO
STRIKE**

Date: _____
Time: _____
Dept.: _____
Judge: _____
Reservation No.: _____

Case: Franciscus Dylan Rosario v. CSAA Insurance Exchange **Case No.:** CGC-25-631802

I. INTRODUCTION

Plaintiff Franciscus Dylan Rosario respectfully submits this Ex Parte Application for an Order Shortening Time. Plaintiff requests that the Court set the hearing for Plaintiff’s Motion for Leave to File a Second Amended Complaint (“SAC”)—a **doctrinally corrected pleading** designed to

1 anchor the action in non-communicative institutional conduct—to be heard either concurrently
2 with or prior to Defendant CSAA Insurance Exchange’s (“CSAA”) pending Special Motion to
3 Strike (Anti-SLAPP) and Demurrer.

4 Good cause exists because CSAA has filed an Anti-SLAPP motion targeting the First Amended
5 Complaint (“FAC”), while Plaintiff has independently prepared and filed a Motion for Leave to
6 Amend (the SAC). Under California law, while a plaintiff cannot generally amend a complaint
7 after an Anti-SLAPP motion is filed as a matter of right to avoid the motion, a trial court retains the
8 discretion to grant leave to amend and to consider the amended pleading when ruling on the Anti-
9 SLAPP motion, provided the amendment is legally viable and addresses the purported deficiencies.
10 See Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858.

11 Plaintiff’s concurrently filed **Opposition to Defendant’s Special Motion to Strike (Anti-SLAPP)**
12 **and Demurrer** includes **Appendix A**, which compares CSAA’s in-argument use of cases to the
13 holdings available in Plaintiff’s record and to the proposed SAC’s gravamen. That analysis, to-
14 gether with Plaintiff’s **Memorandum of Points and Authorities** in support of the motion for leave
15 to file the Second Amended Complaint, allows the Court to rule on sequencing without losing sight
16 of the corrected authority picture.

17 **II. GOOD CAUSE EXISTS TO SHORTEN TIME**

- 18 1. **Judicial Economy:** Hearing the Motion for Leave to Amend concurrently with the Anti-
19 SLAPP motion will prevent the Court from ruling on an outdated pleading (the FAC) when the
20 proposed SAC—which serves as a **doctrinally corrected pleading**—explicitly clarifies the
21 gravamen of the claims (focusing on non-communicative conduct, thereby defeating Prong 1
22 of the Anti-SLAPP analysis).
- 23 2. **Prevention of Prejudice:** If the Anti-SLAPP motion is heard and decided first, Plaintiff may
24 be irrevocably prejudiced by the striking of claims that are fully cured and clarified in the
25 SAC.
- 26 3. **Clarification of Gravamen:** The proposed SAC clearly establishes that the gravamen of
27 Plaintiff’s action is CSAA’s non-communicative failure to investigate and its institutional bad
28 faith business practices, rather than any protected petitioning activity. Reviewing the SAC is

1 essential for the Court to properly conduct the Park v. Board of Trustees analysis.

2 **III. CONCLUSION**

3 For the foregoing reasons, Plaintiff respectfully requests that the Court grant this Ex Parte Applica-
4 tion, shorten time, and calendar Plaintiff's Motion for Leave to File a Second Amended Complaint
5 concurrently with Defendant's Special Motion to Strike.

6 Respectfully submitted,

7 Franciscus Dylan Rosario Plaintiff In Pro Per

Dated: April 13, 2026



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Plaintiff, In Pro Per

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